



CITY COUNCIL MEETING

Via Video Conferencing

Tuesday, December 14, 2021

MINUTES

1. Call to Order and Roll Call:

Mayor Brockett called the meeting to order at 6:00 p.m.

Council Members present virtually:

Benjamin, Brockett, Folkerts, Friend, Joseph, Speer, Wallach, Winer

Yates not present at time of attendance; arrived at 6:16 p.m./announced at 6:27 p.m.

Motion	Made By/Seconded	Vote
Motion to AMEND the agenda to ADD Item 1A - Declaration Recognizing National Homeless Persons' Memorial Day to be read by Mayor Pro Tem Friend REMOVE Item 2B - Resolution 1301 authorizing the purchase of 2691 30th St.	Wallach / Folkerts	Carried 8:0

A. Declaration **Recognizing National Homeless Persons' Memorial Day** read by Mayor Pro Tem Friend

2. Open Comment:

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment **opened** at 6:26 p.m.

Mayor Brockett announced that Council Member Yates arrived at 6:27 p.m.

1. Evan Ravitz – spoke on homelessness encampments and land acknowledgement
2. Jill Grano – spoke on an extension on the enforcement of the fur ban
3. Lindsey Yocum – spoke on an extension on the enforcement of the fur ban
4. Preston Smith – ***Did not show***
5. Tim Thomas – spoke on family displacement from housing
6. Jake Brady – spoke on family displacement and affordable housing
7. Lidia Holl – ***Did not show***
8. John Woodward – spoke on an extension on the enforcement of the fur ban
9. Catherine Leuenberger - spoke on an extension on the enforcement of the fur ban
10. RJ Boyle – spoke on family displacement
11. Jonas Leuenberger - spoke on an extension on the enforcement of the fur ban
12. Christie Lambert - spoke on an extension on the enforcement of the fur ban
13. Lynn Segal – spoke on community togetherness
14. Patrick Murphy – spoke on occupation & carbon taxes
15. Chelsea Castellano – spoke on family displacement
16. SarahDawn Haynes – spoke on family displacement

Open Comment **closed** at 6:56 p.m.

3. **Consent Agenda**

- A. Consideration of a motion to **approve** Council Board and Committee **Appointments for 2022**
- B. **Introduction**, first reading and consideration of a motion to order published by title only **Ordinance 8491** designating the property at **1902 Walnut St. as an individual landmark** per Section 9-11-5 of the Boulder Revised Code, 1981
- C. **Introduction**, first reading and consideration of a motion to order published by title only and **adopt by emergency measure Ordinance 8493 adopting Supplement 149** which codifies previously adopted ordinances as amendments to the Boulder Revised Code, 1981; and setting forth related details
- D. **Second reading** and consideration of a motion to **adopt by emergency measure Ordinance 8492** amending Section 3-2-5, "Rate of Tax," B.R.C. 1981, **to implement the voter approved change presented in Ordinance 8476 extending**

the Capital Improvement Tax now known as the Community, Culture, Resilience and Safety Tax; and setting forth related details

- E. Consideration of a motion to **approve the September 21, 2021** Regular Meeting Minutes
- F. Consideration of a motion to **approve the September 28, 2021** Special Meeting Minutes
- G. Consideration of a motion to **approve the October 5, 2021** Regular Meeting Minutes

Motion	Made By/Seconded	Vote
Motion to APPROVE the consent agenda A-G with an amendment to item A regarding the appointment of Nicole Speer to Denver Regional Council of Governance to be postdated to September 17 th	Yates / Friend	Carried 9:0 Benjamin, Speer and Folkerts RECUSED themselves from Items E, F & G

4. **Call-Up Check-In**

- A. **Landmark Alteration Certificate** for window replacement/rehabilitation at **2420 10th St.**, a contributing property in the Mapleton Hill Historic District

NO ACTION

- B. **Water Service Agreement with University of Colorado at Boulder** for the East Campus

Council Member Speer **RECUSED** herself and left the meeting at 7:17 p.m. She returned to the meeting at 7:20 p.m.

Civil Engineering Senior Manager Edward Stafford presented an outline to Council on this item.

NO ACTION

5. **Public Hearings**

- A. **Second reading** and consideration of a **motion to adopt by emergency measure Ordinance 8514** amending Title 9, "Land Use Code," B.R.C. 1981, to **add conditional use standards for oil and gas operations**, amending Title 3, "Revenue and Taxation," B.R.C. 1981, to adopt an oil and gas pollution tax, repealing Ordinance 8435, and setting forth related details

Karl Guiler, Policy Senior Advisor, provided a presentation and answered questions from Council.

The public hearing **opened** at 8:06 p.m. and the following spoke:

1. Lynn Segal
2. Alejandra Majo

public hearing **closed** at 8:10 p.m.

Motion	Made By/Seconded	Vote
Motion to adopt by emergency measure Ordinance 8514 amending Title 9, "Land Use Code," B.R.C. 1981, to add conditional use standards for oil and gas operations , amending Title 3, "Revenue and Taxation," B.R.C. 1981, to adopt an oil and gas pollution tax, repealing Ordinance 8435, and setting forth related details AND to include the AMENDMENT to 9-6-12 B12 D2 item number 2	Folkerts / Speer	Carried 9:0 ADOPTED BY EMERGENCY

6. **Matters from the City Manager**

- A. **Communications and Engagement Update** on Council Correspondence Process/Format and Council Engagement Subcommittee Update

Director of Communications and Engagement Sarah Huntley, and Digital Transformation Sr Manager Darren Jacoby, provided a presentation and answered questions from Council.

7. **Matters from the City Attorney**

- A. Update on the voter approved initiative - **Humane Clothing Act**

Deputy City Attorney Sandra Llanes, provided council with an update and outline on this item.

8. **Matters from the Mayor and Members of Council**

- A. **Retreat Committee walk thru of the "pre-retreat" timeline** and tasks required prior to the retreat

Council members Bob Yates and Rachel Friend spoke on this item.

9. **Discussion Items**

10. **Debrief**

11. **Adjournment**

There being no further business to come before Council at this time, by motion regularly adopted, the meeting was **adjourned by Mayor Brockett at 10:39 p.m.**

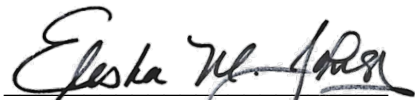
Approved this 5th day of April 2022.

APPROVED BY:

A handwritten signature in black ink, appearing to read 'Aaron Brockett', written over a horizontal line.

Aaron Brockett, Mayor

ATTEST:

A handwritten signature in black ink, appearing to read 'Elesha Johnson', written over a horizontal line.
Elesha Johnson, City Clerk